

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 09-cv-02977-REB-KLM

IOWA PACIFIC HOLDINGS, LLC,

Plaintiff,

v.

NATIONAL RAILROAD PASSENGER CORPORATION,

Defendant.

VERDICT FORM
AND
SPECIAL INTERROGATORIES

We, the jury, on our oaths, present our Answers to Interrogatories submitted by the Court, to which we all have agreed:

1. Did plaintiff, Iowa Pacific Holdings, LLC, prove by a preponderance of the evidence the existence of an oral contract between it and defendant, National Railroad Passenger Corporation (Amtrak), concerning the Denver to Winter Park Ski Train for the 2009-2010 ski season, the essential elements for which are set forth in Instruction No. 6?

Yes

X

No

[If your answer to Question No. 1 is "yes," then please answer Question

No. 2. If your answer to Question No. 1 is "no," then please do not answer

any further questions, but, instead, sign and date this Verdict Form.]

2 . Did plaintiff, Iowa Pacific Holdings, LLC, prove by a preponderance of the evidence that defendant, National Railroad Passenger Corporation, actually or anticipatorily breached its oral contract with plaintiff, as discussed in Instruction No. 11?

Yes

X

No

[If your answer to Question No. 2 is “yes,” then please answer Question No. 3. If your answer to Question No. 2 is “no,” then please do not answer any further questions, but, instead, sign and date this Verdict Form.]

3. Did plaintiff, Iowa Pacific Holdings, LLC, prove by a preponderance of the evidence that defendant’s breach of the oral contract cause damages to plaintiff?

Yes

X

No

[If your answer to Question No. 3 is “yes,” then please answer Question No. 4. If your answer to Question No. 3 is “no,” then please do not answer any further questions, but, instead, sign and date this Verdict Form.]

4. Did defendant, National Railroad Passenger Corporation, prove by a preponderance of the evidence its affirmative defense that there was a material condition in the oral contract that did not occur or was not satisfied for a reason other than one that was attributable to or the fault of defendant, and, therefore, that defendant was excused from performing its contractual obligations, as discussed in Instruction No. 10?

Yes

No

X

[If your answer to Question No. 4 is "no," then please answer Question Nos. 5, 6a, and 6b. If your answer to Question No. 4 is "yes," then please do not answer any further questions, but, instead, sign and date this Verdict Form.]

5. What amount, if any, do you award plaintiff, Iowa Pacific Holdings, LLC, as damages for breach of oral contract? (Although plaintiff cannot recover both lost profits and reliance damages, you may award both, and plaintiff will have the option of selecting its measure of damages.) (Please answer in dollars and cents.)

Lost profits:

\$ 0

Reliance damages:

\$ 829,325 (capitalization and equipment)

\$ 425,000 (advertising)

\$ 425,000 (labor)

6a. Did defendant, National Passenger Railroad Corporation, prove by a preponderance of the evidence its affirmative defense that plaintiff, Iowa Pacific Holdings, LLC, failed to make reasonable efforts to mitigate or reduce its own damages, as discussed in Instruction No. 16?

Yes

X

No

6b. If you answered "yes" to Question 6a above, by what amount do you reduce plaintiff's damages for its failure to mitigate? (Please answer in dollars and cents.)

Answer: \$ 529,375 (reduction)

**YOUR FOREPERSON SHOULD COMPLETE AND DATE,
AND EACH JUROR SHOULD SIGN, THIS VERDICT FORM.**

Dated this 7th day of July, 2011.

FOREPERSON